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would be “discernible,” *i. e.*, capable of being seen. Webster’s Third 644; Random House 409. And it would be “confined,” *i. e.*, held within bounds, see Webster’s Third 476; Random House 308, if the topography of the land in question imposes some boundaries on its flow.

If the term “point source” is read in this way, it would have a broad reach and would cover many of the cases that trouble the Court. Moreover—and I find this point particularly important—even if this interpretation fails to capture every case that seems to call out for regulation, that would not mean that these cases would necessarily remain unchecked. The States have the authority to regulate the discharge of pollutants by non-point sources. See 33 U. S. C. §§ 1285(j), 1314(f), 1329(i), 1329(b)(1), (h). They are entrusted with a vital role under the Clean Water Act, and there is no reason to believe that they would tolerate cases of abuse.

The interpretation I have outlined is not only consistent with the statutory language; it is strongly supported by the Clean Water Act’s regulatory scheme for at least two reasons. First, it respects Congress’ decision to treat point-source pollution differently from non-point-source pollution, including pollution conveyed by groundwater. See 84 Fed. Reg. 16832.⁷ The Court itself recognizes this:

“[T]he structure of the statute indicates that, as to groundwater pollution and non[-]point source pollution,

by the Act include pipes, ditches, tunnels, and conduits, objects that do not themselves generate pollutants but merely transport them.” *Ibid.* (citing § 1362(14)).

⁷The Act contains a number of references to groundwater (a non-point source) outside the NPDES context. The Act textually distinguishes groundwater from surface water and navigable waters, § 1252(a), provides funding for state regulation of groundwater pollution, and suggests that groundwater is a non-point source. See § 1329(h)(5)(D) (authorizing EPA to prioritize grants to States that have implemented or proposed “carry[ing] out ground water quality protection activities which [EPA] determines are part of a comprehensive non[-]point source pollution control program”).

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Congress intended to leave substantial responsibility and autonomy to the States.” *Ante*, at 174.

“Over many decades, and with federal encouragement, the States have developed methods of regulating non-point source pollution through water quality standards, and otherwise.” *Ante*, at 175.

“The Act envisions EPA’s role in managing non[-]point source pollution and groundwater pollution as limited to studying the issue, sharing information with and collecting information from the States, and issuing monetary grants.” *Ibid*.

Point sources are readily identifiable and therefore more susceptible to uniform nationwide regulation. Non-point-source pollution, on the other hand, often presents more complicated issues that are better suited to individualized local solutions. See *Shanty Town Assoc. L. P. v. EPA*, 843 F. 2d 782, 791 (CA4 1988) (“[T]he control of non[-]point source pollution was so dependent on such site-specific factors as topography, soil structure, rainfall, vegetation, and land use that its uniform federal regulation was virtually impossible”); *Natural Resources Defense Council v. EPA*, 915 F. 2d 1314, 1316 (CA9 1990) (“The Act focused on point source polluters presumably because they could be identified and regulated more easily than non[-]point source polluters”); Brief for State of West Virginia et al. as *Amici Curiae* 14–18.

Second, this bright-line rule is consistent with the Act’s remedial scheme. The Clean Water Act imposes a regime of strict liability, §§ 1311, 1342, 1344, backed by criminal penalties and steep civil fines, § 1319. Thus, “the consequences to landowners even for inadvertent violations can be crushing.” *Army Corps of Engineers v. Hawkes Co.*, 578 U. S. 590, 602 (2016) (Kennedy, J., concurring). The Act authorizes as much as \$54,833 in fines per day (or more than \$20 million per year), 40 CFR § 19.4; 84 Fed. Reg. 2059, and contains a 5-year statute of limitations, 28 U. S. C. § 2462. And

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the availability of citizen suits only exacerbates the danger to ordinary landowners. Even when the EPA and the relevant state agency conclude that a permit is not needed, there is always the possibility that a citizen suit will result in a very costly judgment. The interpretation set out above, by providing a relatively straightforward rule, provides a measure of fair notice and promotes good-faith compliance.

B

The alternative way in which the statutory language could be interpreted—reading “from” to mean “originally from”—would lead to extreme results, as the Court recognizes. And while state regulation could fill any unwarranted gaps left by the interpretation I have outlined, there would be no apparent remedy for the overreach that would result from interpreting “from” to mean “originally from.”

The extreme consequences of that interpretation are shown most dramatically by its potential application to ordinary homeowners with septic tanks, a problem that the EPA highlighted in a recent Interpretive Statement. See Interpretive Statement on Application of the Clean Water Act NPDES Program to Releases of Pollutants From a Point Source to Groundwater, 84 Fed. Reg. 16824 (2019). Septic systems—used by 26 million American homes—generally operate by “discharging liquid effluent into perforated pipes buried in a leach field, chambers, or other special units designed to slowly release the effluent into the soil.” *Id.*, at 16812. That effluent then percolates through the soil and “can in certain circumstances ultimately enter groundwater.” *Ibid.*⁸ Congress most certainly did not intend that ordinary

⁸ According to the EPA, numerous other conveyances that deposit pollutants into groundwater could now require NPDES permits. “Activities listed by commentators included aquifer recharge, leaks from sewage collection systems, . . . treatment systems such as constructed wetlands, spills and accidental releases, manure management, and coal ash impoundment seepage.” 84 Fed. Reg. 16812. The County and *amici* also assert that

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homeowners with septic systems obtain NPDES permits—or that they face severe penalties for failing to do so. That, however, is where this alternative interpretation would lead.

And the same is true for the test adopted by the Ninth Circuit. The Ninth Circuit held that a permit is required if a pollutant that reaches navigable waters is “fairly traceable,” but there is no real difference between “fairly traceable” and “originally from.” Unless a pollutant is “traceable” to a point source, how could that point source be required to get a permit? And the addition of the qualifier “fairly” does not seem to add anything. What would it mean for a pollutant to be “unfairly traceable” to a point source? Traceable only as a result of a method that is scientifically unsound? In that situation, why would a court consider the pollutant to be traceable to the source in question at all? So if a pollutant can be reliably determined to have originally come from a point source, a permit would appear to be required under the Ninth Circuit’s test.

Respondents, instead of defending the Ninth Circuit’s interpretation, argue that a discharge from a point source must be the “proximate cause” of a pollutant’s reaching navigable waters. Brief for Respondents 12. But as the Court concludes, *ante*, at 174, there is no basis for transplanting this concept from the law of torts into the Clean Water Act, and it is unclear what it would mean in that context.

For these reasons, of the two possible interpretations of the statutory terms, the better is the interpretation that reads “from” to mean “directly from.”

C

Even if the Court were to find § 1362(12) ambiguous, applicable clear-statement rules foreclose the “functional equivalent” standard and favor the test just described. The Court

respondents’ theory would require permits for green infrastructure, water reuse, and groundwater discharge. See, *e. g.*, Brief for National Association of Clean Water Agencies et al. as *Amici Curiae* 20–26.

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has required a clear statement of congressional intent when an administrative agency seeks to interpret a statute in a way that entails “a significant impingement of the States’ traditional and primary power over land and water use,” *Solid Waste Agency of Northern Cook Cty. v. Army Corps of Engineers*, 531 U. S. 159, 174 (2001) (*SWANCC*), and when it adopts a new and expanded interpretation of a statute, *Utility Air Regulatory Group v. EPA*, 573 U. S. 302 (2014) (*UARG*). The same rules should apply here where what is at issue is a new theory propounded by private plaintiffs.

First, the Court’s “functional equivalent” test unquestionably impinges on the States’ traditional authority. In *SWANCC*, the Court struck down the Army Corps of Engineers’ “Migratory Bird Rule” as inconsistent with the Clean Water Act because the rule effectively displaced state authority over land and water use. In this case, the federalism interest is even stronger because the Clean Water Act itself assigns non-point-source-pollution regulation to the States and explicitly recognizes and protects the state role in environmental protection. 33 U.S.C. § 1251(b). The “functional equivalent” standard expands federal point-source regulation at the expense of state non-point-source regulation. And as a practical matter, States would be saddled with the costs of increased NPDES permitting (because States generally award permits in place of the EPA), while exercising diminished control over non-point-source pollution within their territory. See Brief for State of West Virginia et al. as *Amici Curiae* 27–34.

Second, the Court’s test offends the clear-statement rule recognized in *UARG* by expanding the authority of the EPA. Congress must speak clearly if it “wishes to assign to an agency decisions of vast ‘economic and political significance.’” 573 U. S., at 324 (quoting *FDA v. Brown & Williamson Tobacco Corp.*, 529 U. S. 120, 160 (2000)). In *UARG*, the EPA had promulgated greenhouse-gas emission standards for stationary sources that “constitute[d] an ‘un-

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precedented expansion of EPA authority that would have a profound effect on virtually every sector of the economy and touch every household in the land.’” 573 U.S., at 310–311 (quoting 73 Fed. Reg. 44355 (2008)). The statutory scheme, designed for large stationary sources like factories, would have been extended to smaller sources like hotels and retail establishments. The number of permits (and associated expenses) would have skyrocketed.

Here, as the EPA explained in a recent Interpretive Statement, the Fourth and Ninth Circuit “discharge” tests—which I struggle to distinguish from the “functional equivalent” formulation—broaden the Act’s coverage to “potentially swee[p] into the scope of the statute commonplace and ubiquitous activities such as releases from homeowners’ backyard septic systems.” 84 Fed. Reg. 16823.

IV

The Court does little to justify its newfound standard, other than to point to certain past EPA enforcement actions, see *ante*, at 177, 185, but the EPA’s position on the regulation of groundwater has been anything but consistent. It is true, as the Court recounts, that the EPA has required NPDES permits for the discharge of some pollutants that migrate through groundwater before reaching navigable waters. See *ante*, at 177. But the EPA has contradicted itself on this important question multiple times. See Brief for Edison Electric Institute et al. as *Amici Curiae* 21–32 (reviewing EPA NPDES interpretations and permitting practices).

In the Act’s earliest years, the EPA deputy general counsel wrote in a formal memorandum that “[d]ischarges into ground waters” do not require NPDES permits. Memorandum to EPA Region IX Regional Counsel 2–3 (Dec. 13, 1973).⁹ More recently, the EPA recognized “conflicting legal

⁹This early understanding, as the Court describes, is consistent with the legislative history, which shows that Congress intentionally left regulation of groundwater pollution to the States. See *ante*, at 176–177.

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precedents” on this question. Compare NPDES Permit Regulation and Effluent Limitation Guidelines and Standards for Concentrated Animal Feeding Operations (CAFOs), 68 Fed. Reg. 7216 (2003), with 66 Fed. Reg. 3018 (2001).

Similarly, in its 2019 Interpretive Statement, the EPA acknowledged its “[l]ack of consistent and comprehensive direction” on this issue. See 84 Fed. Reg. 16820; see also Brief for Edison Electric Institute et al. as *Amici Curiae* 21–32 (recounting EPA historical approach to NPDES permitting). But it added that “the best, if not the only, reading of the [Act] is that all releases to groundwater are excluded from the scope of the NPDES program, even where pollutants are conveyed to jurisdictional surface waters via groundwater.” 84 Fed. Reg. 16814.

In short, the EPA’s inconsistent position on the groundwater issue does not provide a sufficient basis for the Court’s new “functional equivalent” test.

* * *

The Court adopts a nebulous standard, enumerates a non-exhaustive list of potentially relevant factors, and washes its hands of the problem. We should not require regulated parties to “feel their way on a case-by-case basis” where the costs of uncertainty are so great. *Rapanos*, 547 U. S., at 758 (ROBERTS, C. J., concurring). The Court’s decision invites “arbitrary and inconsistent decisionmaking.” *UARG*, 573 U. S., at 350 (ALITO, J., concurring in part and dissenting in part). And “[t]hat is not what the Clean [Water] Act contemplates.” *Ibid.*

I would reverse the judgment below and instruct the lower courts to apply the test set out above. I therefore respectfully dissent.

Syllabus

ROMAG FASTENERS, INC. *v.* FOSSIL GROUP, INC.,
FKA FOSSIL, INC., ET AL.CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR
THE FEDERAL CIRCUIT

No. 18–1233. Argued January 14, 2020—Decided April 23, 2020

Romag Fasteners, Inc., and Fossil, Inc., signed an agreement to use Romag’s fasteners in Fossil’s leather goods. Romag eventually discovered that factories in China making Fossil products were using counterfeit Romag fasteners. Romag sued Fossil and certain retailers of Fossil products (collectively, Fossil) for trademark infringement pursuant to 15 U. S. C. § 1125(a). Relying on Second Circuit precedent, the district court rejected Romag’s request for an award of profits, because the jury, while finding that Fossil had acted callously, rejected Romag’s accusation that Fossil had acted willfully.

Held: A plaintiff in a trademark infringement suit is not required to show that a defendant willfully infringed the plaintiff’s trademark as a precondition to a profits award. The Lanham Act provision governing remedies for trademark violations, § 1117(a), makes a showing of willfulness a precondition to a profits award in a suit under § 1125(c) for trademark dilution, but § 1125(a) has never required such a showing. Reading words into a statute should be avoided, especially when they are included elsewhere in the very same statute. That absence seems all the more telling here, where the Act speaks often, expressly, and with considerable care about mental states. See, *e. g.*, §§ 1117(b), (c), 1118. Pointing to § 1117(a)’s language indicating that a violation under § 1125(a) can trigger an award of the defendant’s profits “subject to the principles of equity,” Fossil argues that equity courts historically required a showing of willfulness before authorizing a profits remedy in trademark disputes. But this suggestion relies on the curious assumption that Congress intended to incorporate a willfulness requirement here obliquely while it prescribed *mens rea* conditions expressly elsewhere throughout the Act. Nor is it likely that Congress meant to direct “principles of equity”—a term more naturally suggesting fundamental rules that apply more systematically across claims and practice areas—to a narrow rule about a profits remedy within trademark law. Even crediting Fossil’s assumption, all that can be said with certainty is that pre-Lanham Act case law supports the ordinary principle that a defendant’s mental state is relevant to assigning an appropriate remedy. The place for reconciling the competing and incommensurable policy goals advanced by the parties is before policymakers. Pp. 214–220.

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Vacated and remanded.

GORSUCH, J., delivered the opinion of the Court, in which ROBERTS, C. J., and THOMAS, GINSBURG, BREYER, ALITO, KAGAN, and KAVANAUGH, JJ., joined. ALITO, J., filed a concurring opinion, in which BREYER and KAGAN, JJ., joined, *post*, p. 220. SOTOMAYOR, J., filed an opinion concurring in the judgment, *post*, p. 220.

Lisa S. Blatt argued the cause for petitioner. With her on the briefs were *Amy Mason Saharia*, *A. Joshua Podoll*, *Jonathan Freiman*, and *Jody P. Ellant*.

Neal Kumar Katyal argued the cause for respondents. With him on the brief were *Kirti Datla*, *Jeffrey E. Dupler*, *Lawrence Brocchini*, *Lauren S. Albert*, and *Thomas P. Schmidt*.*

JUSTICE GORSUCH delivered the opinion of the Court.

When it comes to remedies for trademark infringement, the Lanham Act authorizes many. A district court may award a winning plaintiff injunctive relief, damages, or the defendant's ill-gotten profits. Without question, a defendant's state of mind may have a bearing on what relief a plaintiff should receive. An innocent trademark violator often stands in very different shoes than an intentional one. But some circuits have gone further. These courts hold a plaintiff can win a profits remedy, in particular, only after showing the defendant *willfully* infringed its trademark. The question before us is whether that categorical rule can be reconciled with the statute's plain language.

*Briefs of *amici curiae* urging reversal were filed for the American Bar Association by *Judy Perry Martinez* and *Travis R. Wimberly*; and for the Intellectual Property Law Association of Chicago by *Patrick G. Burns*, *Amy C. Ziegler*, *Charles W. Shifley*, and *Robert H. Resis*.

Mark A. Lemley and *Phillip R. Malone* filed a brief for Intellectual Property Law Professors as *amici curiae* urging affirmance.

Briefs of *amici curiae* were filed for the American Intellectual Property Law Association by *Sheldon H. Klein*, *Dean C. Eyler*, and *Kirsten E. Donaldson*; for the Intellectual Property Owners Association by *Kevin H. Rhodes*, *Paul H. Berghoff*, *Eric R. Moran*, and *Nicole E. Grimm*; and for the International Trademark Association by *Lawrence K. Nodine*.

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The question comes to us in a case involving handbag fasteners. Romag sells magnetic snap fasteners for use in leather goods. Fossil designs, markets, and distributes a wide range of fashion accessories. Years ago, the pair signed an agreement allowing Fossil to use Romag's fasteners in Fossil's handbags and other products. Initially, both sides seemed content with the arrangement. But in time Romag discovered that the factories Fossil hired in China to make its products were using counterfeit Romag fasteners—and that Fossil was doing little to guard against the practice. Unable to resolve its concerns amicably, Romag sued. The company alleged that Fossil had infringed its trademark and falsely represented that its fasteners came from Romag. After trial, a jury agreed with Romag, and found that Fossil had acted “in callous disregard” of Romag's rights. At the same time, however, the jury rejected Romag's accusation that Fossil had acted willfully, as that term was defined by the district court.

For our purposes, the last finding is the important one. By way of relief for Fossil's trademark violation, Romag sought (among other things) an order requiring Fossil to hand over the profits it had earned thanks to its trademark violation. But the district court refused this request. The court pointed out that controlling Second Circuit precedent requires a plaintiff seeking a profits award to prove that the defendant's violation was willful. Not all circuits, however, agree with the Second Circuit's rule. We took this case to resolve that dispute over the law's demands. 588 U. S. 919 (2019).

Where does Fossil's proposed willfulness rule come from? The relevant section of the Lanham Act governing remedies for trademark violations, § 35, 60 Stat. 439–440, as amended, 15 U. S. C. § 1117(a), says this:

“When a violation of any right of the registrant of a mark registered in the Patent and Trademark Office, a violation under section 1125(a) or (d) of this title, or a

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willful violation under section 1125(c) of this title, shall have been established . . . , the plaintiff shall be entitled, subject to the provisions of sections 1111 and 1114 of this title, and subject to the principles of equity, to recover (1) defendant's profits, (2) any damages sustained by the plaintiff, and (3) the costs of the action."

Immediately, this language spells trouble for Fossil and the circuit precedent on which it relies. The statute does make a showing of willfulness a precondition to a profits award when the plaintiff proceeds under § 1125(c). That section, added to the Lanham Act some years after its initial adoption, creates a cause of action for trademark dilution—conduct that lessens the association consumers have with a trademark. But Romag alleged and proved a violation of § 1125(a), a provision establishing a cause of action for the false or misleading use of trademarks. And in cases like that, the statutory language has *never* required a showing of willfulness to win a defendant's profits. Yes, the law tells us that a profits award is subject to limitations found in §§ 1111 and 1114. But no one suggests those cross-referenced sections contain the rule Fossil seeks. Nor does this Court usually read into statutes words that aren't there. It's a temptation we are doubly careful to avoid when Congress has (as here) included the term in question elsewhere in the very same statutory provision.

A wider look at the statute's structure gives us even more reason for pause. The Lanham Act speaks often and expressly about mental states. Section 1117(b) requires courts to treble profits or damages and award attorney's fees when a defendant engages in certain acts *intentionally* and with specified *knowledge*. Section 1117(c) increases the cap on statutory damages from \$200,000 to \$2,000,000 for certain *willful* violations. Section 1118 permits courts to order the infringing items be destroyed if a plaintiff proves any violation of § 1125(a) or a *willful* violation of § 1125(c). Section 1114 makes certain *innocent* infringers subject only to in-

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junctions. Elsewhere, the statute specifies certain *mens rea* standards needed to establish liability, before even getting to the question of remedies. See, *e.g.*, §§ 1125(d)(1)(A)(i), (B)(i) (prohibiting certain conduct only if undertaken with “bad faith intent” and listing nine factors relevant to ascertaining bad faith intent). Without doubt, the Lanham Act exhibits considerable care with *mens rea* standards. The absence of any such standard in the provision before us, thus, seems all the more telling.

So how exactly does Fossil seek to conjure a willfulness requirement out of § 1117(a)? Lacking any more obvious statutory hook, the company points to the language indicating that a violation under § 1125(a) can trigger an award of the defendant’s profits “subject to the principles of equity.” § 1117(a). In Fossil’s telling, equity courts historically required a showing of willfulness before authorizing a profits remedy in trademark disputes. Admittedly, equity courts didn’t require so much in patent infringement cases and other arguably analogous suits. See, *e.g.*, *Dowagiac Mfg. Co. v. Minnesota Moline Plow Co.*, 235 U.S. 641, 644, 650–651 (1915). But, Fossil says, trademark is different. There alone, a willfulness requirement was so long and universally recognized that today it rises to the level of a “principle of equity” the Lanham Act carries forward.

It’s a curious suggestion. Fossil’s contention that the term “principles of equity” includes a willfulness requirement would not directly contradict the statute’s other, express *mens rea* provisions or render them wholly superfluous. But it would require us to assume that Congress intended to incorporate a willfulness requirement here obliquely while it prescribed *mens rea* conditions expressly elsewhere throughout the Lanham Act. That might be possible, but on first blush it isn’t exactly an obvious construction of the statute.

Nor do matters improve with a second look. The phrase “principles of equity” doesn’t readily bring to mind a sub-

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stantive rule about *mens rea* from a discrete domain like trademark law. In the context of this statute, it more naturally suggests fundamental rules that apply more systematically across claims and practice areas. A principle is a “fundamental truth or doctrine, as of law; a comprehensive rule or doctrine which furnishes a basis or origin for others.” Black’s Law Dictionary 1417 (3d ed. 1933); Black’s Law Dictionary 1357 (4th ed. 1951). And treatises and handbooks on the “principles of equity” generally contain transsubstantive guidance on broad and fundamental questions about matters like parties, modes of proof, defenses, and remedies. See, e. g., E. Merwin, *Principles of Equity and Equity Pleading* (1895); J. Indermaur & C. Thwaites, *Manual of the Principles of Equity* (7th ed. 1913); H. Smith, *Practical Exposition of the Principles of Equity* (5th ed. 1914); R. Megarry, *Snell’s Principles of Equity* (23d ed. 1947). Our precedent, too, has used the term “principles of equity” to refer to just such transsubstantive topics. See, e. g., *eBay Inc. v. MercExchange, L. L. C.*, 547 U. S. 388, 391, 393 (2006); *Holmberg v. Armbrrecht*, 327 U. S. 392, 395 (1946). Congress itself has elsewhere used “equitable principles” in just this way: An amendment to a different section of the Lanham Act lists “laches, estoppel, and acquiescence” as examples of “equitable principles.” 15 U. S. C. § 1069. Given all this, it seems a little unlikely Congress meant “principles of equity” to direct us to a narrow rule about a profits remedy within trademark law.

But even if we were to spot Fossil that first essential premise of its argument, the next has problems too. From the record the parties have put before us, it’s far from clear whether trademark law historically required a showing of willfulness before allowing a profits remedy. The Trademark Act of 1905—the Lanham Act’s statutory predecessor which many earlier cases interpreted and applied—did not mention such a requirement. It’s true, as Fossil notes, that some courts proceeding before the 1905 Act, and even some

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later cases following that Act, did treat willfulness or something like it as a prerequisite for a profits award and rarely authorized profits for purely good-faith infringement. See, e. g., *Horlick's Malted Milk Corp. v. Horluck's, Inc.*, 51 F. 2d 357, 359 (WD Wash. 1931) (explaining that the plaintiff “cannot recover defendant’s profits unless it has been shown beyond a reasonable doubt that defendant was guilty of willful fraud in the use of the enjoined trade-name”); see also *Saxlehner v. Siegel-Cooper Co.*, 179 U. S. 42, 42–43 (1900) (holding that one defendant “should not be required to account for gains and profits” when it “appear[ed] to have acted in good faith”). But Romag cites other cases that expressly rejected any such rule. See, e. g., *Oakes v. Tonsmierre*, 49 F. 447, 453 (CC SD Ala. 1883); see also *Stonebraker v. Stonebraker*, 33 Md. 252, 268 (1870); *Lawrence-Williams Co. v. Societe Enfants Gombault et Cie*, 52 F. 2d 774, 778 (CA6 1931).

The confusion doesn’t end there. Other authorities advanced still different understandings about the relationship between *mens rea* and profits awards in trademark cases. See, e. g., H. Nims, *Law of Unfair Competition and Trade-Marks* § 424 (2d ed. 1917) (“An accounting will not be ordered where the infringing party acted innocently and in ignorance of the plaintiff’s rights”); N. Hesseltine, *Digest of the Law of Trade-Marks and Unfair Trade* 305 (1906) (contrasting a case holding “[n]o account as to profits allowed except as to user after *knowledge* of plaintiff’s right to trade-mark” and one permitting profits “although defendant did not know of infringement” (emphasis added)). And the vast majority of the cases both Romag and Fossil cite simply failed to speak clearly to the issue one way or another. See, e. g., *Hostetter v. Vowinkle*, 12 F. Cas. 546, 547 (No. 6,714) (CC Neb. 1871); *Graham v. Plate*, 40 Cal. 593, 597–599 (1871); *Hemmeter Cigar Co. v. Congress Cigar Co.*, 118 F. 2d 64, 71–72 (CA6 1941).

At the end of it all, the most we can say with certainty is this. *Mens rea* figured as an important consideration in

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awarding profits in pre-Lanham Act cases. This reflects the ordinary, transsubstantive principle that a defendant's mental state is relevant to assigning an appropriate remedy. That principle arises not only in equity, but across many legal contexts. See, *e. g.*, *Smith v. Wade*, 461 U. S. 30, 38–51 (1983) (42 U. S. C. § 1983); *Morissette v. United States*, 342 U. S. 246, 250–263 (1952) (criminal law); *Wooden-Ware Co. v. United States*, 106 U. S. 432, 434–435 (1882) (common law trespass). It's a principle reflected in the Lanham Act's text, too, which permits greater statutory damages for certain willful violations than for other violations. 15 U. S. C. § 1117(c). And it is a principle long reflected in equity practice where district courts have often considered a defendant's mental state, among other factors, when exercising their discretion in choosing a fitting remedy. See, *e. g.*, *L. P. Larson, Jr., Co. v. Wm. Wrigley, Jr., Co.*, 277 U. S. 97, 99–100 (1928); *Lander v. Lujan*, 888 F. 2d 153, 155–156 (CA DC 1989); *United States v. Klimek*, 952 F. Supp. 1100, 1117 (ED Pa. 1997). Given these traditional principles, we do not doubt that a trademark defendant's mental state is a highly important consideration in determining whether an award of profits is appropriate. But acknowledging that much is a far cry from insisting on the inflexible precondition to recovery Fossil advances.

With little to work with in the statute's language, structure, and history, Fossil ultimately rests on an appeal to policy. The company tells us that stouter restraints on profits awards are needed to deter “baseless” trademark suits. Meanwhile, Romag insists that its reading of the statute will promote greater respect for trademarks in the “modern global economy.” As these things go, *amici* amplify both sides' policy arguments. Maybe, too, each side has a point. But the place for reconciling competing and incommensurable policy goals like these is before policymakers. This Court's limited role is to read and apply the law those policymakers have ordained, and here our task is clear. The judg-

SOTOMAYOR, J., concurring in judgment

ment of the court of appeals is vacated, and the case is remanded for further proceedings consistent with this opinion.

It is so ordered.

JUSTICE ALITO, with whom JUSTICE BREYER and JUSTICE KAGAN join, concurring.

We took this case to decide whether willful infringement is a prerequisite to an award of profits under 15 U. S. C. § 1117(a). The Federal Circuit held that willfulness is such a prerequisite. *Romag Fasteners, Inc. v. Fossil, Inc.*, 817 F. 3d 782, 791 (2016). That is incorrect. The relevant authorities, particularly pre-Lanham Act case law, show that willfulness is a highly important consideration in awarding profits under § 1117(a), but not an absolute precondition. I would so hold and concur on that ground.

JUSTICE SOTOMAYOR, concurring in the judgment.

I agree that 15 U. S. C. § 1117(a) does not impose a “willfulness” prerequisite for awarding profits in trademark infringement actions. Courts of equity, however, defined “willfulness” to encompass a range of culpable mental states—including the equivalent of recklessness, but excluding “good faith” or negligence. See 5 McCarthy on Trademarks and Unfair Competition § 30:62 (5th ed. 2019) (explaining that “willfulness” ranged from fraudulent and knowing to reckless and indifferent behavior); see also, *e. g.*, *Lawrence-Williams Co. v. Societe Enfants Gombault et Cie*, 52 F. 2d 774, 778 (CA6 1931); *Regis v. Jaynes*, 191 Mass. 245, 248–249, 77 N. E. 774, 776 (1906).

The majority suggests that courts of equity were just as likely to award profits for such “willful” infringement as they were for “innocent” infringement. *Ante*, at 218. But that does not reflect the weight of authority, which indicates that profits were hardly, if ever, awarded for innocent infringement. See, *e. g.*, *Wood v. Peffer*, 55 Cal. App. 2d 116, 125 (1942) (explaining that “equity constantly refuses, for want of fraudulent intent, the prayer for an accounting of profits”);

SOTOMAYOR, J., concurring in judgment

Globe-Wernicke Co. v. Safe-Cabinet Co., 110 Ohio St. 609, 617, 144 N. E. 711, 713 (1924) (“By the great weight of authority, particularly where the infringement . . . was deliberate and willful, it is held that the wrongdoer is required to account for all profits realized by him as a result of his wrongful acts”); *Dickey v. Mutual Film Corp.*, 186 App. Div. 701, 702, 174 N. Y. S. 784 (1919) (declining to award profits because there was “no proof of any fraudulent intent upon the part of the defendant”); *Standard Cigar Co. v. Goldsmith*, 58 Pa. Super. 33, 37 (1914) (reasoning that a defendant “should be compelled to account for . . . profits” where “the infringement complained of was not the result of mistake or ignorance of the plaintiff’s right”). Nor would doing so seem to be consistent with longstanding equitable principles which, after all, seek to deprive only wrongdoers of their gains from misconduct. Cf. *Duplate Corp. v. Triplex Safety Glass Co.*, 298 U. S. 448, 456–457 (1936). Thus, a district court’s award of profits for innocent or good-faith trademark infringement would not be consonant with the “principles of equity” referenced in § 1117(a) and reflected in the cases the majority cites. *Ante*, at 218–219.

Because the majority is agnostic about awarding profits for both “willful” and innocent infringement as those terms have been understood, I concur in the judgment only.

Syllabus

BARTON *v.* BARR, ATTORNEY GENERALCERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR
THE ELEVENTH CIRCUIT

No. 18–725. Argued November 4, 2019—Decided April 23, 2020

When a lawful permanent resident commits certain serious crimes, the Government may initiate removal proceedings before an immigration judge. 8 U. S. C. § 1229a. If the lawful permanent resident is found removable, the immigration judge may cancel removal, but only if the lawful permanent resident meets strict statutory eligibility requirements. §§ 1229b(a), 1229b(d)(1)(B).

Over the span of 12 years, lawful permanent resident Andre Barton was convicted of state crimes, including a firearms offense, drug offenses, and aggravated assault offenses. An Immigration Judge found him removable based on his state firearms and drug offenses. Barton applied for cancellation of removal. Among the eligibility requirements, a lawful permanent resident must have “resided in the United States continuously for 7 years after having been admitted in any status.” § 1229b(a)(2). Another provision, the so-called stop-time rule, provides that a continuous period of residence “shall be deemed to end” when the lawful permanent resident commits “an offense referred to in section 1182(a)(2) . . . that renders the alien inadmissible to the United States under section 1182(a)(2).” § 1229b(d)(1)(B). Because Barton’s aggravated assault offenses were committed within his first seven years of admission and were covered by § 1182(a)(2), the Immigration Judge concluded that Barton was not eligible for cancellation of removal. The Board of Immigration Appeals and the Eleventh Circuit agreed.

Held: For purposes of cancellation-of-removal eligibility, a § 1182(a)(2) offense committed during the initial seven years of residence does not need to be one of the offenses of removal. Pp. 229–240.

(a) The cancellation-of-removal statute functions like a traditional recidivist sentencing statute, making a noncitizen’s prior crimes relevant to eligibility for cancellation of removal. The statute’s text clarifies two points relevant here. First, cancellation of removal is precluded when, during the initial seven years of residence, the noncitizen “committed an offense referred to in section 1182(a)(2),” even if (as in Barton’s case) the *conviction* occurred after the seven years elapsed. Second, the offense must “rende[r] the alien inadmissible” as a result. For crimes involving moral turpitude, the relevant category here, § 1182(a)(2) provides that a noncitizen is rendered “inadmissible” when he is convicted of or admits the offense. § 1182(a)(2)(A)(i).

Syllabus

As a matter of statutory text and structure, the analysis here is straightforward. Barton’s aggravated assault offenses were crimes involving moral turpitude and therefore “referred to in section 1182(a)(2).” He committed the offenses during his initial seven years of residence and was later convicted of the offenses, thereby rendering him “inadmissible.” Barton was, therefore, ineligible for cancellation of removal. Pp. 229–233.

(b) Barton’s counterarguments are unpersuasive. First, he claims that the statute’s structure supports an “offense of removal” approach. But §1227(a)(2) offenses—not §1182(a)(2) offenses—are ordinarily the basis for removal of lawful permanent residents. Therefore, Barton’s structural argument falls apart. If he were correct, the statute presumably would specify offenses “referred to in section 1182(a)(2) *or* section 1227(a)(2).” By contrast, some other immigration law provisions do focus only on the offense of removal, and their statutory text and context support that limitation. See, *e.g.*, §§1226(a), (c)(1)(A), 1252(a)(2)(C).

Second, seizing on the statutory phrase “committed an offense referred to in section 1182(a)(2) . . . that renders the alien inadmissible to the United States under section 1182(a)(2),” §1229b(d)(1)(B), Barton argues that a noncitizen is rendered “inadmissible” when actually adjudicated as inadmissible and denied admission to the United States, something that usually cannot happen to a lawfully admitted noncitizen. But the statutory text employs the term “inadmissibility” as a status that can result from, *e.g.*, a noncitizen’s (including a lawfully admitted noncitizen’s) commission of certain offenses listed in §1182(a)(2). See, *e.g.*, §§1182(a)(2)(A)(i), (B). And Congress has made that status relevant in several statutory contexts that apply to lawfully admitted noncitizens such as Barton. In those contexts, a noncitizen faces immigration consequences from being convicted of a §1182(a)(2) offense even though the noncitizen is lawfully admitted and is not necessarily removable solely because of that offense. See, *e.g.*, §§1160(a)(1)(C), (a)(3)(B)(ii). Such examples pose a major hurdle for Barton’s textual argument, and Barton has no persuasive answer.

Third, Barton argues that the Government’s interpretation treats as surplusage the phrase “or removable from the United States under section 1227(a)(2) or 1227(a)(4).” But redundancies are common in statutory drafting. The Court has often recognized that sometimes the better overall reading of a statute contains some redundancy. And redundancy in one portion of a statute is not a license to rewrite or eviscerate another portion of the statute contrary to its text.

Finally, Barton argues alternatively that, even if inadmissibility is a status, and even if the offense that precludes cancellation of removal need not be one of the offenses of removal, a noncitizen must at least

Opinion of the Court

have been *capable of* being charged with a § 1182(a)(2) inadmissibility offense as the basis for removal. Because the cancellation-of-removal statute is a recidivist statute, however, whether the offense that precludes cancellation of removal was charged or could have been charged as one of the offenses of removal is irrelevant. Pp. 233–240.

904 F. 3d 1294, affirmed.

KAVANAUGH, J., delivered the opinion of the Court, in which ROBERTS, C. J., and THOMAS, ALITO, and GORSUCH, JJ., joined. SOTOMAYOR, J., filed a dissenting opinion, in which GINSBURG, BREYER, and KAGAN, JJ., joined, *post*, p. 240.

Adam G. Unikowsky argued the cause for petitioner. With him on the briefs were *Lauren J. Hartz* and *H. Glenn Fogle, Jr.*

Frederick Liu argued the cause for respondent. With him on the brief were *Solicitor General Francisco*, *Assistant Attorney General Hunt*, *Deputy Solicitor General Kneedler*, *Donald E. Keener*, *John W. Blakeley*, *Patrick J. Glen*, and *Timothy G. Hayes*.*

JUSTICE KAVANAUGH delivered the opinion of the Court.

Under the immigration laws, a noncitizen who is authorized to live permanently in the United States is a lawful permanent resident—also commonly known as a green-card holder. But unlike a U. S. citizen, a lawful permanent resident who commits a serious crime may be removed from the United States.

Andre Barton is a Jamaican national and a longtime lawful permanent resident of the United States. During his time

*Briefs of *amici curiae* urging reversal were filed for the Capital Area Immigrants' Rights Coalition by *Susan Baker Manning*; for Former United States Immigration Judges by *David G. Keyko*, *Robert L. Sills*, and *Eric Epstein*; for the National Immigrant Justice Center et al. by *Jean-Claude André* and *Charles Roth*; and for Momodoulamin Jobe et al. by *Ari Holtzblatt* and *Noah A. Levine*.

Nancy Morawetz filed a brief for Immigration Law Professors as *amici curiae*.